

1 _____ BILL NO. _____

2 INTRODUCED BY _____

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4 A BILL FOR AN ACT ENTITLED: "AN ACT PERMITTING THE COMMERCIAL BUYING, SELLING, TRADING,
5 AND DEALING OF SKINS AND PELTS OF BADGERS, RACOONS, RED FOXES, AND WOLVES BY FUR
6 DEALERS; REVISING THE DEFINITION OF "FUR DEALER"; REVISING PERSONS REQUIRED TO HAVE A
7 FUR DEALER'S LICENSE; AMENDING SECTIONS 87-4-301, 87-4-303, AND 87-6-101, MCA; AND
8 PROVIDING AN IMMEDIATE EFFECTIVE DATE."

9

10 BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

11

12 **Section 1.** Section 87-4-301, MCA, is amended to read:

13 **"87-4-301. Fur dealers defined.** (1) A person or persons, firm, company, or corporation engaging in,
14 carrying on, or conducting wholly or in part the business of buying or selling, trading, or dealing within the state
15 of Montana in the skins or pelts of badgers, racoons, red foxes, wolves, or any animal or animals designated by
16 the laws of Montana as fur-bearing or predatory animals is considered a fur dealer within the meaning of this
17 part.

18 (2) If the fur dealer resides in or if the fur dealer's principal place of business is within the state of
19 Montana, the fur dealer is considered a resident fur dealer. All other fur dealers are considered nonresident fur
20 dealers."

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22 **Section 2.** Section 87-4-303, MCA, is amended to read:

23 **"87-4-303. Persons required to have fur dealer's license.** A fur dealer shall, before buying, selling,
24 or in any manner dealing in the skins or pelts of badgers, racoons, red foxes, wolves, any-fur-bearing animals,
25 or predatory ~~animal~~ animals within this state, secure a fur dealer's license from the director. A license is not
26 required for a hunter or trapper selling skins or pelts that the hunter or trapper has lawfully taken or for a person
27 who is not a fur dealer who purchases skins or pelts exclusively for the person's own use and not for sale."

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1 **Section 3.** Section 87-6-101, MCA, is amended to read:

2 **"87-6-101. Definitions.** Unless the context requires otherwise, in this chapter, the following definitions
3 apply:

4 (1) "Alternative livestock" means a privately owned caribou, white-tailed deer, mule deer, elk,
5 moose, antelope, mountain sheep, or mountain goat indigenous to the state of Montana, a privately owned
6 reindeer, or any other cloven-hoofed ungulate as classified by the department. Black bear and mountain lion
7 must be regulated pursuant to Title 87, chapter 4, part 8.

8 (2) "Alternative livestock ranch" means the enclosed land area upon which alternative livestock
9 may be kept for purposes of obtaining, rearing in captivity, keeping, or selling alternative livestock or parts of
10 alternative livestock, as authorized under Title 87, chapter 4, part 4.

11 (3) "Aircraft" means any manned or unmanned aerial vehicle or device that is used or intended to
12 be used for flight in the air.

13 (4) (a) "Bait" means any animal matter, vegetable matter, or natural or artificial scent placed in an
14 area inhabited by wildlife for the purpose of attracting game animals or game birds.

15 (b) The term does not include:

16 (i) decoys, silhouettes, or other replicas of wildlife body forms;

17 (ii) scents used only to mask human odor; or

18 (iii) types of scents that are approved by the commission for attracting game animals or game
19 birds.

20 (5) "Closed season" means the time during which game birds, fish, game animals, and fur-bearing
21 animals may not be lawfully taken.

22 (6) "Cloven-hoofed ungulate" means an animal of the order Artiodactyla, except a member of the
23 families Suidae, Camelidae, or Hippopotamidae. The term does not include domestic pigs, domestic cows,
24 domestic yaks, domestic sheep, domestic goats that are not naturally occurring in the wild in their country of
25 origin, or bison.

26 (7) "Conviction" means a judgment or sentence entered following a guilty plea, a nolo contendere
27 plea, a verdict or finding of guilty rendered by a legally constituted jury or by a court of competent jurisdiction
28 authorized to try the case without a jury, or a forfeiture of bail or collateral deposited to secure the person's

1 appearance in court that has not been vacated.

2 (8) "Field trial" has the meaning provided in 87-3-601.

3 (9) "Fishing" means to take or harvest fish or the act of a person possessing any instrument,
4 article, or substance for the purpose of taking or harvesting fish in any location that a fish might inhabit.

5 (10) (a) "Fur dealer" means a person engaging in, carrying on, or conducting wholly or in part the
6 business of buying or selling, trading, or dealing within the state of Montana in the skins or pelts of badgers,
7 racoons, red foxes, wolves, fur-bearing animals, or predatory animals.

8 (b) If a fur dealer resides in Montana or if the fur dealer's principal place of business is within the
9 state of Montana, the fur dealer is considered a resident fur dealer. All other fur dealers are considered
10 nonresident fur dealers.

11 (11) "Fur farm" means enclosed land on which furbearers are kept for purposes of obtaining, rearing
12 in captivity, keeping, and selling furbearers or parts of furbearers.

13 (12) (a) "Fur-bearing animal" or "furbearer" means marten or sable, otter, muskrat, fisher, mink,
14 bobcat, lynx, wolverine, northern swift fox, and beaver.

15 (b) As used in Title 87, chapter 4, part 10, "furbearer" does not include fox or mink.

16 (13) "Game animal" means deer, elk, moose, antelope, caribou, mountain sheep, mountain goat,
17 mountain lion, bear, and wild buffalo.

18 (14) "Game fish" means all species of the family Salmonidae (chars, trout, salmon, grayling, and
19 whitefish); all species of the genus Stizostedion (sandpike or sauger and walleyed pike or yellowpike perch); all
20 species of the genus Esox (northern pike, pickerel, and muskellunge); all species of the genus Micropterus
21 (bass); all species of the genus Polyodon (paddlefish); all species of the family Acipenseridae (sturgeon); all
22 species of the genus Lota (burbot or ling); the species *Perca flavescens* (yellow perch); all species of the genus
23 *Pomoxis* (crappie); and the species *Ictalurus punctatus* (channel catfish).

24 (15) "Hunt" means to pursue, shoot, wound, take, harvest, kill, chase, lure, possess, or capture or
25 the act of a person possessing a weapon, as defined in 45-2-101, or using a dog or a bird of prey for the
26 purpose of shooting, wounding, taking, harvesting, killing, possessing, or capturing wildlife protected by the
27 laws of this state in any location that wildlife may inhabit, whether or not the wildlife is then or subsequently
28 taken. The term includes an attempt to take or harvest by any means, including but not limited to pursuing,

1 shooting, wounding, killing, chasing, luring, possessing, or capturing.

2 (16) "Knowingly" has the meaning provided in 45-2-101.

3 (17) "Livestock" includes ostriches, rheas, and emus.

4 (18) "Migratory game bird" means waterfowl, including wild ducks, wild geese, brant, and swans;
5 cranes, including little brown and sandhill; rails, including coots; Wilson's snipes or jacksnipes; and mourning
6 doves.

7 (19) "Negligently" has the meaning provided in 45-2-101.

8 (20) "Nongame wildlife" means any wild mammal, bird, amphibian, reptile, fish, mollusk, crustacean,
9 or other animal not otherwise legally classified by statute or regulation of this state.

10 (21) "Open season" means the time during which game birds, fish, and game and fur-bearing
11 animals may be lawfully taken.

12 (22) "Participating state" means any state that enacts legislation to become a member of the
13 Interstate Wildlife Violator Compact.

14 (23) "Person" means an individual, association, partnership, and corporation.

15 (24) "Possession" has the meaning provided in 45-2-101.

16 (25) "Predatory animal" means coyote, weasel, skunk, and civet cat.

17 (26) "Purposely" has the meaning provided in 45-2-101.

18 (27) "Raptor" means all birds of the orders Falconiformes and Strigiformes, commonly called
19 falcons, hawks, eagles, ospreys, and owls.

20 (28) "Resident" has the meaning provided in 87-2-102.

21 (29) "Roadside menagerie" means any place where one or more wild animals are kept in captivity
22 for the evident purpose of exhibition or attracting trade, on or off the facility premises. It does not include the
23 exhibition of any animal by an educational institution or by a traveling theatrical exhibition or circus based
24 outside of Montana.

25 (30) "Sale" means a contract by which a person:

26 (a) transfers an interest in either game or fish for a price; or

27 (b) transfers, barter, or exchanges an interest either in game or fish for an article or thing of value.

28 (31) "Site of the kill" means the location where a game animal or game bird expires and the person

1 responsible for the death takes physical possession of the carcass.

2 (32) "Supplemental feed attractant" means any food, garbage, or other attractant for game animals.

3 The term does not include growing plants or plants harvested for the feeding of livestock.

4 (33) "Taxidermist" means a person who conducts a business for the purpose of mounting,
5 preserving, or preparing all or part of the dead bodies of any wildlife.

6 (34) "Trap" means to take or harvest or participate in the taking or harvesting of any wildlife
7 protected by state law by setting or placing any mechanical device, snare, deadfall, pit, or device intended to
8 take wildlife or to remove wildlife from any of these devices.

9 (35) "Upland game birds" means sharptailed grouse, blue grouse, spruce (Franklin) grouse, prairie
10 chicken, sage hen or sage grouse, ruffed grouse, ring-necked pheasant, Hungarian partridge, ptarmigan, wild
11 turkey, and chukar partridge.

12 (36) "Wild animal" means an animal that is wild by nature as distinguished from common domestic
13 animals, whether the animal was bred or reared in captivity, and includes birds and reptiles.

14 (37) "Wild animal menagerie" means any place where one or more bears or large cats, including
15 cougars, lions, tigers, jaguars, leopards, pumas, cheetahs, ocelots, and hybrids of those large cats, are kept in
16 captivity for use other than public exhibition.

17 (38) "Wild buffalo or bison" or "wild buffalo" means a bison that:

18 (a) has not been reduced to captivity;

19 (b) has never been subject to the per capita fee under 15-24-921;

20 (c) has never been owned by a person; and

21 (d) is not the offspring of a bison that has been subject to the per capita fee under 15-24-921.

22 (39) "Wildlife sanctuary" means a facility organized as a Montana nonprofit corporation pursuant to
23 Title 35, chapter 2, or in good standing with and accredited by the American sanctuary association or the global
24 federation of animal sanctuaries for the purpose of providing homes for nonreleasable wild animals.

25 Accreditation and good standing must be proven with a copy of an accreditation report completed as required
26 by the accrediting organization.

27 (40) "Zoo" means any zoological garden chartered as a nonprofit corporation by the state or in good
28 standing with and accredited by the association of zoos and aquariums or the zoological association of America

1 for the purpose of exhibiting wild animals for public viewing. Accreditation and good standing must be proven
 2 with a copy of an accreditation report completed as required by the accrediting organization."

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4 NEW SECTION. **Section 4. Effective date.** [This act] is effective on passage and approval.

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